

KENYA PORTS AUTHORITY



XTRANET COMMUNICATIONS LIMITED

**PROVISION ON INTERNET AND MPLS
SERVICES TO CATER FOR DIGITAL
TRUNKED RADIO COMMUNICATION SYSTEM
BETWEEN MSA-ICDN, SHIMONI, KILIFI AND
LAMU**

MCS/5/1/1596

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TENDER No. KPA/036/2022-23/ICT

This Agreement made the 27th day of January 2023

BETWEEN

KENYA PORTS AUTHORITY a statutory corporation incorporated under the Kenya Ports Authority Act Cap.391 Laws of Kenya of **P.O BOX 95009-80104, MOMBASA KENYA** which expression shall include its successors and assigns (hereinafter called "the Authority") of the one part; and **XTRANET COMMUNICATIONS LIMITED (No.C.125130)** a limited liability Company incorporated under the Companies Act 2015 Laws of Kenya of **P.O. BOX 27346-00100 NAIROBI** which expression shall include its successors and assigns (hereinafter called "the Supplier") of the other part.

WHEREAS

The Authority has invited Tenders for **PROVISION OF INTERNET AND MPLS SERVICES TO CATER FOR DIGITAL TRUNKED RADIO COMMUNICATION SYSTEM BETWEEN MSA-ICDN, SHIMONI, KILIFI AND LAMU TENDER NO.KPA/036/2022-23/ICT** with certain specifications as more particularly described in Annex "E" hereunder

AND WHEREAS

The Authority has accepted the offer by the Supplier for the Supply, Installation Testing and Commissioning of **PROVISION OF INTERNET AND MPLS SERVICES TO CATER FOR DIGITAL TRUNKED RADIO COMMUNICATION SYSTEM BETWEEN MSA-ICDN, SHIMONI, KILIFI AND LAMU** (hereinafter referred to as "Equipment") in accordance with

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the General and Special Conditions and Specifications hereinafter referred to for the **NEGOTIATED** sum of:

KSHs.13,979,600.00 (KSHs. Thirteen Million Nine Hundred and Seventy-Nine Thousand Six Hundred Shillings Only) VAT Inclusive. (One-Off Cost of KSHs.7,928,000.00 and Annual Recurrent Fees for Maintenance and Support services of KSHs. 3,025,800.00 totaling to KSHs.6,051,600.00 for 2years.

Made up as follows:

Price Schedule:

A. One-Off Non-Recurrent Cost				
No.	Description	Unit Price (KES)	Qty	Total (KES)
1.	Installation cost of MPLS Link 10 Mbps (ICD Nairobi)	1,204,160.00	1	1,204,160.00
2.	Installation of MPLS Link 10Mbps (KPA Tower at HQ)	1,192,500.00	1	1,192,500.00
3.	Installation of MPLS Link (Shimoni)	818,850.00	1	818,850.00
4.	Installation of MPLS Link 10Mbps (Lamu Port)	1,012,300.00	1	1,012,300.00
5.	Installation of MPLS Link 10Mbps (Kilifi)	943,400.00	1	943,400.00
6.	Radio Communications Routing Devices. One per site	585,120.00	5	2,925,600.00
7.	Back-to-Back Integration of Hytera DMR Systems	421,562.00	5	2,107,810.00
Total One-off Cost				9,980,070.00
Negotiated (less 2,052,070.00)				7,928,000.00
B. Recurrent Cost				
No.	Description	Unit Price (KES)	Qty	Total (KES)
1.	MPLS Link 10 Mbps (ICD Nairobi)	2,650.00	10	26,500.00
2.	MPLS Link 10 Mbps (MSA HQ)	2,650.00	10	26,500.00
3.	MPLS Link 10Mbps (Shimoni)	2,650.00	10	26,500.00
4.	MPLS Link 10Mbps (Kilifi)	2,650.00	10	26,500.00
5.	MPLS Link 10Mbps (Lamu Port)	2,650.00	10	26,500.00
6.	Support Hytera DMR System connectivity	37,630.00	10	376,300.00
Monthly Recurrent Cost				504,300.00
Annual Recurrent Cost				6,051,600.00
Total Cost (A+B)(KSHs.7,928,000.00+KSHs.6,051,600.00)				13,979,600.00

Delivery period: Three (3) Weeks upon contract signing.



PSM/CTC/1/03 (036) VOL. 1

19th December, 2022

M/s. Xtranet Communications Limited
P.O. Box 27346 - 00100
NAIROBI, KENYA

Tel: +254202490999

Email: finance@xtranet.co.ke

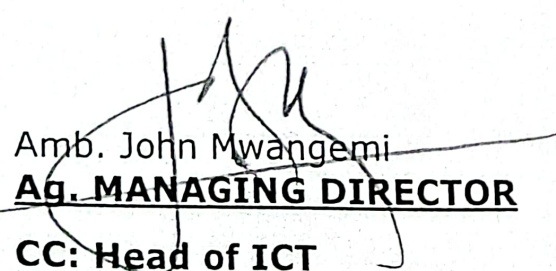
**NOTIFICATION OF AWARD: TENDER NO. KPA/036/2022-23/ICT –
PROVISION OF INTERNET AND MPLS SERVICES TO CATER FOR
DIGITAL TRUNKED RADIO COMMUNICATION SYSTEM BETWEEN
MSA-ICDN, SHIMONI, KILIFI AND LAMU.**

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This is to notify you that you have been awarded the above tender at your negotiated price of **Kshs. 13,979,600.00 (Thirteen Million, Nine Seventy-Nine Thousand, six Hundred Shillings only) VAT Inclusive (One-Off Cost of Kshs. 7,928,000.00 and Annual Recurrent Fees of Kshs. 6,051,600.00)** with a delivery period of three (3) weeks upon signing of contract and Service Level Agreement of two (2) years.

1. Please acknowledge receipt of this letter of notification signifying your acceptance within seven (7) days from the date of receipt of this letter.
2. You are required to provide a performance security amounting to 10% of the contract sum in the form of an unconditional guarantee in the format provided in the tender document and from a reputable bank with operations in Kenya valid for the period of the contract.
3. The contract shall be signed by the parties within the tender validity period upon submission of the performance bond referred to above.

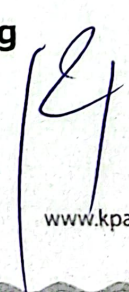
We thank you for your participation in the tender and look forward to working with you in future. Should you require any further clarification, please do not hesitate to contact the office of the undersigned.


Amb. John Mwangemi
Ag. MANAGING DIRECTOR

**CC: Head of ICT
Head of Contracts & Conveyancing**

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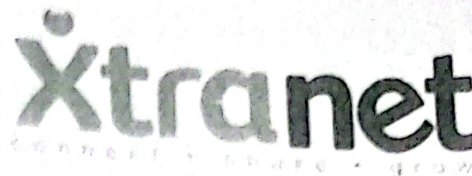
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Email: kpamd@kpa.co.ke


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22nd December 2022

Ref: XTR/2212/KPA/01



Managing Director
Kenya Port Authority,
P O Box 95009-80104
Nairobi, Kenya.

Dear Sir,

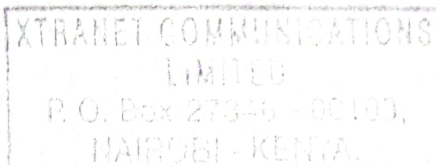
REF: ACCEPTANCE OF AWARD: TENDER NO.KPA/036/2022-23/ICT-PROVISION OF INTERNET AND MPLS SERVICES

We acknowledge letter referenced PSM/CTC/ 1/03(036) Vol.1 for Provision of Internet and MPLS Services to Cater for Digital Trunked Radio Communications System Between MSA-ICDN, Shimoni ,Kilifi and Lamu for total Sum Ksh.13,979,600(Thirteen Million, Nine Hundred Seventy Nine Thousand, and Six Hundred)

We accept the request, understand the contents and shall abide as stated.

Yours Sincerely,

Evan Kamau
For: Chief Executive Officer



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